All Domestic Relations cases will be heard by phone or video.
Go to http://www.cookcountycourt.org/LinkClick.aspx?fileticket=G7A8KAcSi8E%3d&portalid=0
to get more information and Zoom Meeting IDs.
Remote Court Date: No hearing scheduled

FILED
4/17/2026 3:47 PM
Mariyana T. Spyropoulos
CIRCUIT CLERK
COOK COUNTY, IL
2024D006724
Calendar, 11
37649371

FILED DATE: 4/17/2026 3:47 PM 2024D006724

IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT - DOMESTIC RELATIONS DIVISION

IN RE THE MARRIAGE OF:	)	
	)	
JOEL THORARINSON,	)	
Petitioner/Counter-Respondent,	)	
	)	No. 2024 D 6724
v.	)	
	)	Cal. 11
HEATHER KIM ATAGAN,	)	
Respondent/Counter-Petitioner.	)	

THIRD
VERIFIED PETITION FOR ADJUDICATION OF INDIRECT CIVIL CONTEMPT AND FOR OTHER RELIEF

NOW COMES the Respondent/Counter-Petitioner, HEATHER ATAGAN (hereinafter, "HEATHER"), by and through her attorneys, FITZPATRICK TARARA FAMILY LAW, LLC, pursuant to 750 ILCS 5/505, 5/508, and 5/511, and this Court's inherent contempt powers, respectfully petitions this Honorable Court to issue a Rule against the Petitioner/Counter-Respondent, JOEL THORARINSON ("JOEL"), to show cause, if any he can, why he should not be held in indirect civil contempt of this Court for his failure to comply with this court's orders. In support thereof, HEATHER states as follows:

SUMMARY OF CONTEMPT

Third Contempt Petition		
Count	**Order Violated**	**Violation**
1	2/20/26 Order	Joel failed to become current on outstanding mortgage balance.
2	4/30/25 Agreed Order - Temporary Financial Matters	Joel failed to pay temporary support for the months of October 2025-April 2026.

2nd Contempt Petition		
Count	**Order Violated**	**Violation**
1	4/30/25 Agreed Order - Temporary Financial Matters	Joel failed to pay temporary support for the months of June-October.

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2	4/30/25 Agreed Order - Temporary Financial Matters	Joel continues to transact in the Joint JP Morgan account.
3	4/30/25 Agreed Order	Joel has failed to tender his Financial Affidavit and supporting documents.

1st Contempt Petition (filed May 19, 2025)		
Count	**Order Violated**	**Violation**
1	4/28/25 Agreed Order - OurFamily Wizard	Joel accessed Heather's email and sent harassing texts.
2	4/28/25 Agreed Order - Parent Conduct	Joel accessed and removed numerous documents and emails from Heather's email and Google Drive account.
3	4/30/25 Agreed Order - No Contact	Joel sent harassing emails and texts to Heather and the parties' daughter.
4	4/30/25 Agreed Order - Temporary Financial Matters	Joel withdrew significant funds from the Joint JP Morgan account.

FACTS COMMON TO ALL COUNTS

1. The parties were married on August 10, 2008, in Calgary, Alberta, Canada, where the marriage was duly registered.

2. Two (2) children were born to the parties during the marriage, namely: Ariana, born April 2, 2010, currently fifteen (15) years of age; and Roman, born September 19, 2012, currently thirteen (13) years of age. No other children were born to the parties or adopted, and HEATHER is not currently pregnant.

3. On September 9, 2024, JOEL filed a PETITION FOR DISSOLUTION OF MARRIAGE ("PETITION FOR DISSOLUTION") which remains pending and undetermined before the Court.

4. On April 30, 2025, the Court entered the AGREED ORDER: TEMPORARY FINANCIAL MATTERS and AGREED ORDER setting forth a briefing schedule on pending pleadings and requiring the parties to exchange Financial Affidavits and supporting documents by May 15, 2025. Said agreed orders are attached herein as **Exhibit A** and **Exhibit B** respectively.

5. On May 19, 2025, HEATHER filed her first VERIFIED PETITION FOR ADJUDICATION

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OF INDIRECT CIVIL CONTEMPT AND FOR OTHER RELIEF ("FIRST CONTEMPT PETITION") for JOEL's failure to comply with numerous agreed orders as summarized above.

6. On October 28, 2025, HEATHER filed her SECOND VERIFIED PETITION FOR ADJUDICATION OF INDIRECT CIVIL CONTEMPT AND FOR OTHER RELIEF ("SECOND CONTEMPT PETITION") for JOEL's failure to comply with numerous agreed orders as summarized above.

7. On February 13, 2026, after JOEL continued to fail to comply with temporary orders, and refused to pay HEATHER temporary support, HEATHER filed her EMERGENCY MOTION TO SET HEARING *INSTANTER* as she was unable to make monthly mortgage payments for the marital residence where she and the minor children reside.

8. On February 20, 2026, the Court entered an ORDER that states in Paragraph 1(c) "within thirty (30) days or by March 22, 2026, JOEL shall become current on the outstanding mortgage balance." The February 20, 2026 ORDER is attached herein as **Exhibit C.**

9. The Court also issued the rules to show cause regarding HEATHER's FIRST and SECOND CONTEMPT PETITIONS which are returnable on May 5, 2026 as set forth in the February 20, 2026 ORDER and the ORDER ON RULE TO SHOW CAUSE entered on February 20, 2026 and attached herein as **Exhibit D.**

LAW OF CONTEMPT

10. Indirect civil contempt occurs where a party fails to do something ordered by the court, outside of the presence of the court, whereby the failing party has the method to purge the contempt by an act. *In re Marriage of Charous*, 386 Ill.App.3d 99, 107 (2d Dist. 2006).

11. The existence of an order of the trial court and the failure to comply satisfies the prima facie showing for a rule to issue, it is presumptively willful and the burden is on the failing party to demonstrate it was not. See *In re Marriage of Sharp*, 369 Ill.App.3d 271, 280 (2d Dist. 2006).

12. A party who fails to pay the allowances ordered has the burden of proving that his failure

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to comply was not willful or contumacious and that he has a valid excuse for his failure to pay. *Id.*

13. Section 508(b) of the IMDMA, 750 ILCS 5/508(b), provides in pertinent part as follows:

> In every proceeding for the enforcement of an order of judgment when the court finds that the failure to comply with the order or judgment was without compelling cause or justification, the court ***shall*** order the party against whom the proceeding is brought to pay promptly the costs and reasonable attorney's fees of the prevailing party.

(Emphasis added). 750 ILCS 5/508(b)

14. In any context, "[a] party who has been forced to resort to the judicial process to secure compliance with the terms of an order or judgment is entitled to her reasonable attorney fees even absent a showing of inability to pay." *In re Marriage of Irvine*, 215 III.App.3d 629, 635 (4th Dist. 1991).

COUNT I: FAILURE TO PAY MORTGAGE

15. The ORDER entered on February 20, 2026, states in Paragraph 1(a)-1(c) as follows:

"1. Emergency Motion:

a. The Court finds this matter to be an emergency and HEATHER's EMERGENCY MOTION FOR HEARING *INSTANTER* is granted in part.

b. As of February 20, 2026, the balance of the mortgage for the marital residence is $13,495.94.

c. Within thirty (30) days or by March 22, 2026, JOEL shall become current on the outstanding mortgage balance."

See **Exhibit C.**

16. JOEL failed to pay the $13,495.94 mortgage balance by March 22, 2026.

17. To date, JOEL has failed to become current on the outstanding mortgage balance which now totals $26,355.84.

18. JOEL's conduct is willful and contumacious and he has no legally sufficient reason for his failure to comply with the clear terms of Paragraph 2(a) of the AGREED ORDER: TEMPORARY FINANCIAL MATTERS entered on April 30, 2025, and pay temporary support to HEATHER.

19. Accordingly, this Court should issue a rule against JOEL to show cause, if any, why

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he should not be held in indirect civil contempt for his willful and contumacious failure and refusal to comply with the AGREED ORDER: TEMPORARY FINANCIAL MATTERS entered on April 30, 2025.

20. HEATHER has incurred attorneys' fees and costs in the preparation and presentation of this Petition, which was necessitated solely as a result of JOEL's failure to comply with the Agreement.

WHEREFORE, the Respondent/Counter-Petitioner, HEATHER ATAGAN, respectfully requests that this Honorable Court:

A. Issue a rule to show cause, *instanter*, requiring Petitioner/Counter-Respondent, JOEL THORARINSON, to show cause, if any he can, why he should not be held in indirect civil contempt of court for his failure to comply with the terms of the ORDER, Paragraph 1(c) entered on February 20, 2026;

B. Find that JOEL THORARINSON's failure to comply with the ORDER, Paragraph 1(c) entered on February 20, 2026, is both willful and contumacious;

C. Hold JOEL THORARINSON in indirect civil contempt for his failure to comply with Paragraph 1(c) of the ORDER entered on February 20, 2026, and become current on the outstanding mortgage balance;

D. Order JOEL THORARINSON to immediately purge said contempt by requiring JOEL THORARINSON immediately become current on the outstanding mortgage balance totaling $26,355.84;

E. Award HEATHER ATAGAN reasonable attorney's fees and costs expended in the preparation, presentation, and prosecution of the Instant Petition for Indirect Civil Contempt in accordance with Section 508(b) of the IMDMA, 750 ILCS 5/508(b); and

F. Order such other and further relief as this Court deems just and equitable.

COUNT II: FAILURE TO PAY TEMPORARY SUPPORT

21. HEATHER restates and realleges Paragraphs 1-20 as though fully restated verbatim herein as Paragraph 21.

22. The AGREED ORDER: TEMPORARY FINANCIAL MATTERS entered on April 30, 2025, states in Paragraph 2(a)-2(c) as follows:

"2. Temporary Support:

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d. Without prejudice to either party and without prejudice to any claim of retroactive maintenance and/or child support, contribution to child-related expenses, and contribution to other marital expenses, and recalculation of any maintenance or child support, retroactive or otherwise, JOEL shall pay to HEATHER the amount of $10,000.00, as and for temporary maintenance on or before the 1st of each month, beginning May 1, 2025. Accordingly, JOEL shall deposit $10,000.00 into the Joint JP Morgan Checking Account x2151 before 5:00pm on the 1st of each month until further order or court.

e. In the event that JOEL receives any additional income that exceeds his base salary of $250,000.00 gross income per year, JOEL shall transfer fifty-percent (50%) of the same to the Joint JP Morgan Checking Account x2151 and a paystub evidencing JOEL's receipt of said bonus within fourteen (14) days of receipt of the same.

f. JOEL shall not access, transact, transfer, withdraw, or otherwise engage with the JP Morgan Checking Account x2151 excluding the deposits detailed herein."

See **Exhibit A.**

23. On April 30, 2025, JOEL deposited $10,000.00 into the Joint JP Morgan Checking Account x2151 in compliance with the AGREED ORDER: TEMPORARY FINANCIAL MATTERS entered on April 30, 2025.

24. Since April 30, 2025, JOEL has made the following deposits into the Joint JP Morgan Checking Account x2151 and allowed said sums to remain in the account until HEATHER was able to transfer them to her individual account.

Support Payments per 4/30/25 Agreed Order - Temporary Financial Matters		
Date	**Amount Due**	**Amount Paid**
5/1/2025	$10,000.00	$10,000.00
6/1/2025	$10,000.00	$4,000.00
7/1/2025	$10,000.00	$7,000.00
8/1/2025	$10,000.00	
9/1/2025	$10,000.00	$8,500.00
10/1/2025	$10,000.00	$3,141.00
11/1/2025	$10,000.00	
12/1/2025	$10,000.00	
1/1/2026	$10,000.00	
2/1/2026	$10,000.00	
3/1/2026	$10,000.00	
4/1/2026	$10,000.00	

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Total	**$120,000.00**	**$32,641.00**
Amount Owed	**$87,359.00**	

25. Accordingly, **JOEL owes to HEATHER $87,359.00** as and for unpaid temporary support.

26. JOEL's conduct is willful and contumacious and he has no legally sufficient reason for his failure to comply with the clear terms of Paragraph 2(a) of the AGREED ORDER: TEMPORARY FINANCIAL MATTERS entered on April 30, 2025, and pay temporary support to HEATHER.

27. Accordingly, this Court should issue a rule against JOEL to show cause, if any, why he should not be held in indirect civil contempt for his willful and contumacious failure and refusal to comply with the AGREED ORDER: TEMPORARY FINANCIAL MATTERS entered on April 30, 2025.

28. HEATHER has incurred attorneys' fees and costs in the preparation and presentation of this Petition, which was necessitated solely as a result of JOEL's failure to comply with the Agreement.

WHEREFORE, the Respondent/Counter-Petitioner, HEATHER ATAGAN, respectfully requests that this Honorable Court:

A. Issue a rule to show cause, *instanter*, requiring Petitioner/Counter-Respondent, JOEL THORARINSON, to show cause, if any he can, why he should not be held in indirect civil contempt of court for his failure to comply with the terms of the AGREED ORDER: TEMPORARY FINANCIAL MATTERS, Paragraph 2(a) entered on April 30, 2025;

B. Find that JOEL THORARINSON's failure to comply with the AGREED ORDER: TEMPORARY FINANCIAL MATTERS, Paragraph 2(a) entered on April 30, 2025, is both willful and contumacious;

C. Hold JOEL THORARINSON in indirect civil contempt for his failure to comply with Paragraph 2(a) of the AGREED ORDER: TEMPORARY FINANCIAL MATTERS entered on April 30, 2025, and pay temporary support to HEATHER in the amount of $87,359.00;

D. Order JOEL THORARINSON to immediately purge said contempt by requiring JOEL THORARINSON immediately become current with his monthly support obligation and pay to HEATHER the amount of $87,359.00;

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E. Award HEATHER ATAGAN reasonable attorney's fees and costs expended in the preparation, presentation, and prosecution of the Instant Petition for Indirect Civil Contempt in accordance with Section 508(b) of the IMDMA, 750 ILCS 5/508(b); and

F. Order such other and further relief as this Court deems just and equitable.

Respectfully Submitted,

ANNEMARIE TARARA

FITZPATRICK TARARA FAMILY LAW, LLC
Attorneys for Respondent/Counter-Petitioner
35 E. Wacker Drive, Suite 650
Chicago, IL 60601
(312) 588-9773
Atty. No. 103060
Notice@ftfamilylawyers.com

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VERIFICATION

Under penalties as provided by law pursuant to 735 ILCS 5/1-109, I, **HEATHER KIM ATAGAN,** being first duly sworn and on oath depose and state that I am the Respondent/Counter-Petitioner in the above-captioned matter; that I have read the foregoing pleading and have knowledge of the contents thereof; and that the statements set forth in this instrument are true and correct, except as to matters therein stated to be on information and belief and as to such matters I certify as aforesaid that I verily believe the same to be true.

HEATHER KIM ATAGAN
Respondent/Counter-Petitioner

FITZPATRICK TARARA FAMILY LAW, LLC
Attorneys for Respondent/Counter-Petitioner
35 E. Wacker Drive, Suite 650
Chicago, IL 60601
(312) 588-9773
Atty. No. 103060
Notice@ftfamilylawyers.com

All Domestic Relations cases will be heard by phone or video.
Go to http://www.cookcountycourt.org/LinkClick.aspx?fileticket=G7A8KAcSi8E%3d&portalid=0
to get more information and Zoom Meeting IDs.
Remote Court Date: No hearing scheduled

EXHIBIT A

FILED
4/17/2026 3:47 PM
Mariyana T. Spyropoulos
CIRCUIT CLERK
COOK COUNTY, IL
2024D006724
Calendar, 11
37649371

FILED DATE: 4/17/2026 3:47 PM 2024D006724

IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT - DOMESTIC RELATIONS DIVISION

IN RE THE MARRIAGE OF	)	
	)	
JOEL THORARINSON,	)	
Petitioner/Counter-Respondent,	)	
	)	No. 2024 D 6724
v.	)	
	)	Cal. 11
HEATHER KIM ATAGAN,	)	
Respondent/Counter-Petitioner.	)	

AGREED ORDER:
TEMPORARY FINANCIAL MATTERS

THIS MATTER coming before the Court by agreement of the parties; both parties being represented by counsel, the Court having jurisdiction over the subject matter hereof and the parties hereto; and the Court being duly and fully advised in the premises:

IT IS HEREBY ORDERED:

1) **Temporary Restraining Order:**

a) Effective immediately, the Petitioner/Counter-Respondent, JOEL THORARINSON, is hereby restrained from accessing, transacting, withdrawing, transferring, dissipating or otherwise engaging with funds held in the parties' marital bank accounts, investment accounts, brokerage accounts, retirement accounts, stocks, bonds, life insurance policies, and the like, including but not limited to accounts held at JP Morgan Chase Bank, and Revolut Bank, until further order of Court.

b) JOEL's Revolut Checking Account x 9026 and the Joint JP Morgan Checking Account x2151 shall not be restrained by the terms of this *instant* order.

c) JOEL's Revolut Checking Account x 9026 and the Joint JP Morgan Checking Account x2151 shall only be utilized by the parties for the payment of expenses consistent with the status quo established during the parties' marriage. Any expenses not consistent with the status quo shall be agreed upon by the parties in writing, through counsel, prior to the payment of said expenses.

d) Counsel for the Respondent/Counter-Petitioner shall serve this instant order to any and all financial institutions where it is believed that marital assets are currently held or were previously held.

2) **Temporary Support:**

a) Without prejudice to either party and without prejudice to any claim of retroactive maintenance and/or child support, contribution to child-related expenses, and contribution

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to other marital expenses, and recalculation of any maintenance or child support, retroactive or otherwise, JOEL shall pay to HEATHER the amount of $10,000.00, as and for temporary maintenance on or before the 1st of each month, beginning May 1, 2025. Accordingly, JOEL shall deposit $10,000.00 into the Joint JP Morgan Checking Account x2151 before 5:00pm on the 1st of each month until further order or court.

b) In the event that JOEL receives any additional income that exceeds his base salary of $250,000.00 gross income per year, JOEL shall transfer fifty-percent (50%) of the same to the Joint JP Morgan Checking Account x2151 and a paystub evidencing JOEL's receipt of said bonus within fourteen (14) days of receipt of the same.

c) JOEL shall not access, transact, transfer, withdraw, or otherwise engage with the JP Morgan Checking Account x2151 excluding the deposits detailed herein.

3) **Interim Attorneys' Fees:**

a) An interim fee award of $15,000.00 is entered in favor of HEATHER ATAGAN, to be paid by JOEL THORARINSON to HEATHER's counsel, MEREL FAMILY LAW, for reasonable attorney's fees and costs.

b) By 5:00pm on May 1, 2025, JOEL THORARINSON shall tender a $15,000.00 payment directly to MEREL FAMILY LAW as and for interim attorney's fees and costs.

c) By 5:00 p.m. on May 1, 2025, JOEL THORARINSON shall pay $15,000.00 to THE LAW OFFICES OF JOHN CONNIFF as and for interim attorneys fees and costs.

d) The assessment of the interim fee award is without prejudice to any final allocation and without prejudice as to any claim or right of either party.

AGREED:

JOEL THORARINSON

HEATHER ATAGAN

ENTERED:

JUDGE

2302

4-30-25

MEREL FAMILY LAW
Attorneys for Respondent/Counter-Petitioner
440 W. Randolph St., 5th Floor
Chicago, IL 60606
(312) 408-7000
notice@merelfamilylaw.com
Attorney No. 45550
Counsel for Petitioner/Counter-Respondent:: jconniff@jacfamilylaw.com

ENTERED
Judge Matthew Jannusch-2302
APR 30 2025
CLERK OF THE CIRCUIT COURT OF COOK COUNTY, IL
Deputy Clerk

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EXHIBIT B

FILED DATE: 4/17/2026 3:47 PM 2024D006724

IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT - DOMESTIC RELATIONS DIVISION

IN RE THE MARRIAGE OF	)	
	)	
JOEL THORARINSON,	)	
Petitioner/Counter-Respondent,	)	
	)	No. 2024 D 6724
v.	)	
	)	Cal. 11
HEATHER KIM ATAGAN,	)	
Respondent/Counter-Petitioner.	)	

AGREED ORDER:
NO CONTACT

THIS MATTER coming before the Court by agreement of the parties; both parties being represented by counsel, the Court having jurisdiction over the subject matter hereof and the parties hereto; and the Court being duly and fully advised in the premises:

IT IS HEREBY ORDERED:

1. The Petitioner/Counter-Respondent, JOEL THORARINSON, is prohibited, enjoined and restrained from committing any of the following acts towards the Respondent/Counter-Petitioner, HEATHER ATAGAN, harassment, interference with personal liberty, physical abuse, verbal abuse, willful deprivation, neglect or exploitation as defined in the Illinois Domestic Violence Act or stalking as defined in Section 12-7.3 of the Illinois Criminal Code of 1992.

2. JOEL is prohibited, enjoined, and restrained from contacting the parties' minor children in any way including via call, text, WhatsApp, social media, or any other form of communication. If either of the parties' minor children contact JOEL, JOEL shall be able to respond and shall interact appropriately at all times with the minor children.

3. HEATHER is allocated all parenting time with the minor children until further order of Court and shall be solely responsible for all major decision making as it relates to the children's education, medical and healthcare, extracurricular activities, and other day-to-day decisions.

4. This order is entered on a temporary basis and without prejudice.

AGREED:

JOEL THORARINSON

HEATHER ATAGAN

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FILED DATE: 4/17/2026 3:47 PM 2024D006724

ENTERED:

JUDGE

4-30-25

2302

MEREL FAMILY LAW
Attorneys for Respondent/Counter-Petitioner
440 W. Randolph St., 5th Floor
Chicago, IL 60606
(312) 408-7000
notice@merelfamilylaw.com
Attorney No. 45550
John Conniff: jconniff@jacfamilylaw.com

ENTERED
Judge Matthew Jannusch-2302
APR 30 2025
CLERK OF THE CIRCUIT COURT
OF COOK COUNTY, IL
Deputy Clerk

Doc ID: 1693ef2b6c4e4fe9c6ba9b4b707cd757f3da0c48

EXHIBIT C

FILED DATE: 4/17/2026 3:47 PM 2024D006724

IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT - DOMESTIC RELATIONS DIVISION

IN RE THE MARRIAGE OF	)	
	)	
JOEL THORARINSON,	)	
Petitioner/Counter-Respondent,	)	
	)	**No. 2024 D 6724**
v.	)	
	)	**Cal. 11**
HEATHER KIM ATAGAN,	)	
Respondent/Counter-Petitioner.	)	

ORDER

THIS MATTER coming before the Court on February 20, 2026, for **PRESENTATION** of HEATHER'S EMERGENCY MOTION FOR HEARING *INSTANTER*; and **PRE-TRIAL CONFERENCE;** both parties being represented by counsel and appearing in-person; HEATHER appearing in-person, JOEL appearing via Zoom; the Court having jurisdiction over the subject matter hereof and the parties hereto; and the Court being duly and fully advised in the premises:

IT IS HEREBY ORDERED:

1. **Emergency Motion:**

   a. The Court finds this matter to be an emergency and HEATHER's EMERGENCY MOTION FOR HEARING *INSTANTER* is granted in part.

   b. As of February 20, 2026, the balance of the mortgage for the marital residence is $13,495.94.

   c. Within thirty (30) days or by March 22, 2026, JOEL shall become current on the outstanding mortgage balance.

2. **Contempt Petitions:**

   a. The Rule to Show Cause shall be issued regarding HEATHER's first VERIFIED PETITION FOR ADJUDICATION FOR INDIRECT CIVIL CONTEMPT AND FOR OTHER RELIEF filed on May 19, 2025. An order on rule to show cause shall be entered contemporaneously with this *instant* order.

   b. The Rule to Show Cause shall be issued regarding HEATHER's SECOND VERIFIED PETITION FOR ADJUDICATION FOR INDIRECT CIVIL CONTEMPT AND FOR OTHER RELIEF filed on October 28, 2025. An order on rule to show cause shall be entered contemporaneously with this *instant* order.

3. **Briefing Schedule:**

   a. JOEL is granted twenty-eight (28) days or until March 20, 2026, to file a response to HEATHER's FIRST and SECOND VERIFIED PETITION FOR ADJUDICATION FOR INDIRECT CIVIL CONTEMPT AND FOR OTHER RELIEF.

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b. HEATHER is granted fourteen (14) days thereafter or until April 3, 2026, to file her replies if she so chooses.

c. This matter is continued to **May 5, 2026, at 1:30pm**, for **HEARING** on HEATHER's FIRST and SECOND VERIFIED PETITION FOR ADJUDICATION FOR INDIRECT CIVIL CONTEMPT AND FOR OTHER RELIEF. The parties and counsel shall appear in-person. Failure of the Petitioner to appear in person may result in a body attachment and/or findings of contempt consistent with said rule(s) that issued in paragraph 2 of this order. MJ

d. All other pending pleadings are entered and continued.

ENTERED:

Matthew Jannusch
JUDGE 2302

2·20·26.

ENTERED
Judge Matthew Jannusch-2302
FEB 20 2026
MARIYANA T. SPYROPOULOS
CLERK OF THE CIRCUIT COURT
OF COOK COUNTY, IL

FITZPATRICK TARARA FAMILY LAW, LLC
Attorneys for Respondent/Counter-Petitioner
35 W. Wacker Dr., Suite 650
Chicago, IL 60601
(312) 588-9773
atarara@merelfamilylaw.com
Attorney No. 103060
John Conniff: jconniff@jacfamilylaw.com

EXHIBIT D

FILED DATE: 4/17/2026 3:47 PM 2024D006724

4262 - Rule To Show Cause Be Issued - Allowed
4250 - Order Plaintiff, Defendant or Witness to Appear - Allowed
4215 - Comply - Allowed
9262 - Rule to Issue and Returnable **(12/01/24) CCDR 0031**

IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT, DOMESTIC RELATIONS DIVISION

IN RE: ☑ Marriage ☐ Civil Union ☐ Legal Separation ☐ Allocation of Parental Responsibilities ☐ Visitation (Non-Parent) ☐ Support ☐ Parentage of:

Joel Thorarinson
Petitioner

and

Heather Atagan
Respondent

No.: 2024 D 6724

Calendar:

ORDER ON RULE TO SHOW CAUSE

This matter coming before the Court on a verified petition for Rule to Show Cause why Joel Thorarinson (Respondent/Petitioner) should not be held in indirect civil contempt of Court for willful failure to obey a Court order, and the Petitioner appearing ☑ in person ☑ through counsel, and Respondent likewise appearing ☐ in person ☑ through counsel;

THE COURT FINDS a prima facie case of indirect civil contempt has been shown by ☑ the petition or ☐ sworn testimony.

IT IS HEREBY ORDERED THAT:

4262 1. A Rule will issue against Petitioner/Respondent to show cause why s/he should not be held in contempt of Court for failure to 1st Contempt Petition: 1) use OFW, 2) not access Heather's email, 3) not communicate with the children directly, 4) refrain from transacting in JT Acct 2nd Contempt Petition: 1) pay temporary support, 2) refrain from transacting in Joint Account, 3) tender his Financial Affidavit and supporting docs as ordered by the Court on 4/28/25 and 4/30/25.

4250 2. Respondent is ordered to appear at:

9262
- ☑ Richard J. Daley Center, 50 W. Washington St., Chicago, IL 60602, Courtroom 3003;
- ☐ Parentage and Child Support Court, Richard J. Daley Center, 50 W. Washington St., CL-24, Chicago, Illinois 60602;
- ☐ District 2: 5600 Old Orchard Rd., Skokie, Illinois 60077, Courtroom 203;
- ☐ District 3: 2121 Euclid, Rolling Meadows, Illinois 60008, Courtroom 105 or ☐ Courtroom 106;
- ☐ District 4: 1500 Maybrook Dr., Maywood, Illinois 60153, Courtroom 201;
- ☐ District 5: 10220 S. 76th Ave., Bridgeview, Illinois 60455, Courtroom 106;
- ☐ District 6: 16501 S. Kedzie Pkwy., Markham, Illinois 60426, Courtroom 202;
- ☐

on May 5, 2026 at 1:30pm to respond to the Rule, said Rule being returnable on that date.

4215 3. Service of this Order and the petition shall be by:
☐ Regular, First Class Mail; ☐ Certified Mail; ☐ Personal Service by Sheriff;
☐ Personal Service by Special Process Server; and/or ☑ Personally, in open Court.

NOTICE

FAILURE TO APPEAR AS ORDERED BY THE COURT MAY RESULT IN A FINDING OF CONTEMPT AND/OR COURT ORDER FOR A BODY ATTACHMENT WHICH WILL RESULT IN YOUR ARREST BY THE SHERIFF.

Atty. No.: 103060
Name: Annemarie Tarara
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ENTERED: ENTERED Judge Matthew Jannusch-2302 FEB 20 2026 MARIYANA T. SPYROPOULOS CLERK OF THE CIRCUIT COURT OF COOK COUNTY, IL

Dated: 2/20/2026

Judge Judge's No. 2302